

MANAGED IT SERVICES AGREEMENT

Contract ID: SHV-MSP-2024-0915

This Managed IT Services Agreement (this “Agreement”), effective as of September 15, 2024 (the “Effective Date”), is entered into by and between **SecureHaven IT Partners, LLC**, with offices at 1700 Seventh Avenue, Suite 2100, Seattle, WA 98101 (“Provider”), and **Contoso Marketing, LLC**, 1450 Harborview Avenue, Suite 600, Seattle, WA 98101 (“Client”). Provider and Client are each a “party” and together the “parties.”

1. SERVICES

- 1.1 Provider delivers managed IT services for Client’s ~150 endpoints and supporting infrastructure: help desk, endpoint management, patching, backup, network monitoring, and managed endpoint security (EDR), per the **Service Description (Schedule 1)**.
- 1.2 Provider maintains a Security Operations function providing 24×7 monitoring and incident response.

2. TERM, RENEWAL, AND NOTICE

- 2.1 **Initial Term.** Two (2) years from the Effective Date, ending **September 14, 2026**.
- 2.2 **Automatic Renewal.** The Agreement **renews automatically** for successive one-year Renewal Terms unless either party gives notice of non-renewal. Renewal date: **September 15, 2026**.
- 2.3 **Notice.** Non-renewal requires written notice **at least ninety (90) days** before the renewal date—by **June 17, 2026** for the upcoming term.

3. FEES AND ADJUSTMENT

- 3.1 The managed-services fee is **USD \$13,000 per month (USD \$156,000 per year)**, invoiced monthly, **net 30**. Project work outside the managed scope is quoted separately.
- 3.2 **CPI Adjustment.** At each renewal, the monthly fee is adjusted by the trailing-twelve-month change in **CPI-U**, plus up to **three percent (3%)** to reflect tooling and labor costs.

4. DATA PROTECTION AND SECURITY

- 4.1 Provider accesses Client systems containing **personal data and confidential business information**. A **Data Processing Addendum (Exhibit B)** and a **Security Addendum (Exhibit C)** form part of this Agreement.
- 4.2 Provider shall: enforce least-privilege and MFA for all administrative access; encrypt backups; maintain an incident-response plan; report security incidents affecting Client data within twenty-four (24) hours; and support Client’s own compliance obligations.
- 4.3 Provider personnel are subject to background checks and confidentiality obligations.

5. SERVICE LEVELS

Priority-1 response within 15 minutes; resolution targets per the SLA Schedule. Credits are the exclusive remedy for missed SLAs.

6. LIABILITY

Aggregate liability capped at the fees paid in the prior twelve months, except for breaches of Sections 4 (data/security) and confidentiality, which are capped at two times such fees.

7. GOVERNING LAW

This Agreement is governed by the laws of the State of Washington, without regard to its conflict-of-laws principles.

8. GENERAL PROVISIONS

- 8.1 Notices.** All notices under this Agreement shall be in writing and delivered to the addresses set forth above (or such other address as a party designates in writing) by personal delivery, nationally recognized overnight courier, or certified mail, and shall be deemed given upon receipt.
- 8.2 Entire Agreement; Amendment.** This Agreement, together with its Schedules and Exhibits, constitutes the entire agreement between the parties and supersedes all prior or contemporaneous understandings. It may be amended only by a writing signed by both parties.
- 8.3 Assignment.** Neither party may assign this Agreement without the other's prior written consent, except to a successor in connection with a merger or sale of substantially all of its assets.
- 8.4 Severability; Waiver.** If any provision is held unenforceable, the remaining provisions remain in full force and effect. No waiver of any breach shall constitute a waiver of any subsequent breach.
- 8.5 Force Majeure.** Neither party shall be liable for any delay or failure to perform due to causes beyond its reasonable control.
- 8.6 Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original and all of which together constitute one instrument.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

SecureHaven IT Partners, LLC

Contoso Marketing, LLC

Authorized Signature

Authorized Signature

By:

By:

Name: D. Mercier

Name: K. Brandt

Title: Director of Client Services

Title: IT Manager

Date: September 15, 2024

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